MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____
County Where You Are Filing the Motion

REQUEST OF: _____
Your First, Middle, and Last Name

_____
Other Names Used in These Cases

_____ _____ _____
Date of Birth *Race* *Gender*

_____
Case Number
(If the Circuit Clerk assigns a new number)

List the Case Numbers of all Eligible Cannabis Convictions on your Record in this County:

_____ _____ _____ _____ _____
_____ _____ _____ _____ _____
_____ _____ _____ _____ _____
_____ _____ _____ _____ _____
_____ _____ _____ _____ _____

If you are **not a citizen** of the United States, consult with an immigration lawyer before using these forms.
Si **no es ciudadano** de los Estados Unidos, consulte con un abogado de inmigración antes de usar estas formas.

1. All of the cases listed have resulted in convictions for *(check all that apply)*:

a. ☐ Misdemeanor cannabis offenses under 720 ILCS 550/4 or 720 ILCS 550/5.

- AND/OR -

b. ☐ Class 4 felony cannabis offense under 720 ILCS 550/4 or 720 ILCS 550/5.

*You cannot ask to vacate and expunge a criminal conviction unless one of the special situations listed under checkboxes **a** or **b** describes your case. The types of cases include possession, delivery, manufacture, or possession with intent.*

- *Check the box in **a** if any of the cases listed above resulted in misdemeanor convictions for cannabis only.*
- *Check the box in **b** if any of the cases listed above resulted in Class 4 felony convictions for cannabis offenses only.*

2. ☐ I was convicted before June 25, 2019.

*Check the box if **all** of the cannabis convictions you want to vacate happened before June 25, 2019. If any of your cannabis convictions happened **on or after** June 25, 2019, you **cannot** use this form for those convictions.*

3. ☐ I have completed the sentences or conditions imposed by the conviction in each of the cases listed.

You must have completed each sentence, such as probation, or satisfied all conditions imposed by the convictions listed above.

4. I ask the court to VACATE AND EXPUNGE the following misdemeanor or Class 4 felony convictions under Section 4 or 5 of the Cannabis Control Act from the records of the arresting agency, the Circuit Clerk, and the Illinois State Police:

Enter all eligible convictions on your record in this county.

- ***Do not** list any dismissed cases, satisfactorily completed supervisions, or satisfactorily completed qualified probations. Instead, use the "Adult" forms at ilcourts.info/expunge-forms.*
- ***Do not** list any cases where you received convictions for non-cannabis charges. Instead, use the "Adult" forms at ilcourts.info/expunge-forms.*

For help filling out the table on this page and to make sure all your cases are eligible to be vacated and expunged, see the instructions at ilcourts.info/how-to-expunge-cannabis.

	Case Number	Arresting Agency	Cannabis Conviction *(check the type of cannabis conviction)*	Date of Arrest
1.			**Misdemeanor** ☐ **Class 4 Felony** ☐	
2.			**Misdemeanor** ☐ **Class 4 Felony** ☐	
3.			**Misdemeanor** ☐ **Class 4 Felony** ☐	
4.			**Misdemeanor** ☐ **Class 4 Felony** ☐	
5.			**Misdemeanor** ☐ **Class 4 Felony** ☐	

If you need more room for your arrests or cases, use the Additional Cannabis Convictions form and check the box below.

☐ I have listed additional cases on the *Additional Cannabis Convictions* form.

SIGN

Under Illinois Supreme Court Rule 137, my signature means that:

1) I read the document, 2) I have been informed and believe it is true and correct, and 3) I am not filing it to cause delay or for another bad reason.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name _____

☐ **I am completing this form for myself**

Phone Number _____ Email (if you have one) _____

Your Address _____
Street, Apt. #, City, State, Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____
Street, Apt. #, City, State, Zip Code

WHAT'S NEXT

NEXT STEP FOR PERSON FILLING OUT THIS FORM:

After you fill out your forms, file them with the Circuit Clerk's office in the county where your case took place. Find your Circuit Clerk at ilcourts.info/clerks.

Once you file the *Motion to Vacate & Expunge Eligible Cannabis Convictions,* reach out to your Circuit Clerk's office for next steps.



Learn more about each step in the process by reading through the instructions:
ilcourts.info/how-to-expunge-cannabis